

25NNCV05915 25NNCV05915

County: los-angeles

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Case Number: 25NNCV05915 Hearing Date: September 18, 2026 Dept: B

Hon. Victor Avila, Dept B

MOTION TO COMPEL DEPOSITION; REQUEST FOR SANCTIONS

Hearing Date: 9/18/26

CASE NO.: 25NNCV05915

CASE NAME: Damaris Macias vs. Sona Grigoryan, et al.

Moving Party: Defendants Sona Grigoryan and Goar Grigoryan

Responding Party: Unopposed

Notice: Sufficient

Ruling: GRANT.

NOTICE

The Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and ANY PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 3:30 P.M. ON THE COURT DAY BEFORE THE HEARING of the party's intention to argue as to this matter/motion. The tentative ruling will

become the ruling of the court if no argument is received. Notice may be given either by email at BurDeptB@LACourt.org or by telephone at (818) 260-8422.

Parties must appear on all other matters scheduled for this case.

BACKGROUND

This is a personal injury action arising out of a motor vehicle accident which occurred on January 24, 2025. On August 22, 2025, plaintiff Damaris Macias (Plaintiff) filed a Complaint against defendants Sona Grigoryan and Goar Grigoryan (collectively, Defendants).

On August 5, 2026, Defendants filed the instant motion to compel deposition of Plaintiff. As of September 14, 2026, no opposition has been filed. On September 4, 2026, Defendants filed a notice of non-opposition.

LEGAL

STANDARD

A motion to compel deposition "shall be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc., § 2025.450, subd. (b)(2).) "A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion." (Code Civ. Proc., § 2016.040.)

The Code of Civil Procedure provides: "If, after service of a deposition notice, a party to the action . . . without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (Code Civ. Proc., § 2025.450, subd. (a).)

A motion under subdivision (a) shall comply with both of the following:

(1) The motion shall set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.

(2) The motion shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.

(Code Civ. Proc., § 2025.450, subd. (b).)

DISCUSSION

Defendants

move the Court for an Order compelling Plaintiff to appear and testify at a noticed deposition. (Mot., p. 2.)

Meet and Confer

Defendants'

counsel declares that on July 15, 2026, they reached out to Plaintiff's counsel for a meet and confer regarding Plaintiff's non-appearance. (Martinez Decl., ¶ 4.) Defendant's counsel reached out a second time on August 5, 2026, notifying Plaintiff of the intention to file the instant motion. (Ibid.) Defendant's counsel declares that Plaintiff has not responded as of the filing of the instant motion. (Ibid.)

Defendants

have made multiple attempts to meet and confer in good faith. Plaintiff is admonished to engage in required meet and confer efforts in the future.

Motion to Compel Deposition

Defendants

argue on March 12, 2026, they served a deposition notice on Plaintiff for a deposition that was set to take place on June 10, 2026. (Mot., p. 4.) Defendants argue that Plaintiff did not appear to the deposition and at no time prior to June 10, 2026, did Plaintiff serve objections, request a continuance, or notify Defendants that she would not attend. (Mot., p. 5.) Defendants argue that they obtained a certificate of non-appearance and incurred related fees. (Mot., p. 3.)

Plaintiff

has not filed an opposition to challenge non-appearance. Here, Defendants have provided a notice of deposition to Plaintiff and Plaintiff has failed to appear at the noticed deposition or provide objections. (Martinez Decl., ¶¶ 2-3; Exh. A-B.) This constitutes a non-appearance pursuant to section 2025.450(a). (Code Civ. Proc., § 2025.450(a).)

Accordingly, the motion to compel deposition of Plaintiff is GRANTED.

Sanctions

"If a motion under subdivision (a) is granted, the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2025.450(g)(1).)

Defendants argue that Plaintiff has intentionally and willfully misused the discovery process in the refusal to appear and be deposed. (Mot. pp. 5-6.) Thus, Defendants seeks imposition of sanctions in the amount of \$1,623.72. (Mot. p. 6.) This reflects (1) \$563.72 fee for the certificate of non-appearance incurred on June 10, 2026; (2) \$1,000 in attorney's fees reflecting 4 hours at a rate of \$250/hour; and (3) a filing fee of \$60.

Here, the motion to compel deposition has been granted, thus sanctions are warranted. (Code Civ. Proc., § 2025.450(g)(1).) The Court will impose sanctions against Plaintiff in the total amount of \$1,123.72. This consists of the filing fee and non-appearance fee for which Defendants have provided the invoice an. (Martinez Decl., Exh. C.) Additionally, the Court, in its discretion, will reduce attorney's fees to \$500 (2 hours x \$250/hour) due to the straightforward nature of the motion and lack of opposition and reply.

Accordingly, the request for sanctions is GRANTED in the amount of \$1,123.72.

CONCLUSION

AND ORDER

Defendants Sona

Grigoryan and Goar Grigoryan's motion to compel deposition of Plaintiff is GRANTED.

Defendants' request

for sanctions is GRANTED in the amount of \$1,123.72. Plaintiff is ordered to pay Defendants within business 15 days from this ruling.

MOVING PARTY is

to give notice and provide a proposed order consistent with this ruling within 10 days from this date.